

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Magdalena Azmitia	Team: Squad #15	CCRB Case #: 201706361	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 08/02/2017 1:45 PM	Location of Incident: In front of § 87(2)(b); 88th Precinct stationhouse	18 Mo. SOL 2/2/2019	Precinct: 88
Date/Time CV Reported Thu, 08/03/2017 5:16 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/03/2017 5:16 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Lissette Lopez	31828	904385	088 PCT
2. LT Joseph Davids	00000	880813	088 PCT
3. SGT Boris Durets	769	938414	088 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nadia Long	15944	957996	088 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Lissette Lopez	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Lissette Lopez spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POF Lissette Lopez	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Lissette Lopez refused to provide her name and shield number to § 87(2)(b)	B . Unfounded
C . LT Joseph Davids	Abuse: At the 88th Precinct Stationhouse, Lieutenant Joseph Davids did not process § 87(2)(b)'s complaint regarding Police Officer Lissette Lopez.	C . Unfounded
D . SGT Boris Durets	Abuse: At the 88th Precinct Stationhouse, Sergeant Boris Durets did not process § 87(2)(b)'s complaint regarding Police Officer Lissette Lopez.	D . Unfounded

Case Summary

On August 3, 2017, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On August 2, 2017, at 1:40 P.M., § 87(2)(b) double-parked her vehicle in front of § 87(2)(b) in Brooklyn and entered the building to pick up her son from daycare. When she returned to her vehicle, she had been issued parking summons § 87(2)(b) by PO Lissette Lopez of the 88th Precinct, who was at the location with PO Nadia Long of the same command [NYPD 02]. PO Lopez told § 87(2)(b) that she had taken her vehicle license plate. § 87(2)(b) asked why her plate had been removed and noted that the car belonged to her mother, who was also a police officer. PO Lopez allegedly replied, “I don’t care. You and your mother are stupid bitches” (**Allegation A**). PO Lopez then allegedly told § 87(2)(b) to “fuck off” when § 87(2)(b) asked for her name and shield number (within **Allegation A**, and **Allegation B**). PO Lopez allegedly told § 87(2)(b) to refer to the summons for her name and shield number. This was witnessed in part by § 87(2)(b) who runs the daycare. Also present was § 87(2)(b) whose son also attends § 87(2)(b)’s daycare.

On that same day, at approximately 3:00 P.M., § 87(2)(b) went to the 88th Precinct stationhouse to inquire about her license plate and file a complaint against PO Lopez. She spoke to Lt. Joseph Davids and Sgt. Boris Durets, who provided her with a property voucher for her license plate and allegedly gave her the CCRB’s phone number but did not offer to fill out the complaint form with her or file the complaint on her behalf in any other way (**Allegations C and D**).

There is no video footage of either incident.

Mediation, Civil and Criminal Histories

- On August 8, 2017, mediation was explained to and rejected by § 87(2)(b) [BR 03].
- § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident as of October 4, 2017 [BR 15].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Potential Issues

- § 87(2)(g)

- The undersigned attempted to obtain a sworn statement from § 87(2)(b) who was uncooperative. § 87(2)(b) either did not answer phone calls or stated that she could not take time off from work. No letters were mailed to § 87(2)(b) given that she was reachable by phone the majority of the time. § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 17].
- PO Lopez has been a member of service for 24 years and has been the subject of 16 allegations in 11 CCRB complaints, none of which were substantiated. § 87(2)(g)

Two of these allegations were unsubstantiated; one was withdrawn; and the two most recent allegations were closed as complainant uncooperative and victim unavailable, respectively.

- Lt. Davids has been a member of service for 34 years and has been the subject of one other CCRB allegation, which was unfounded.
- Sgt. Durets has been a member of service for 12 years and has been the subject of two other CCRB allegations, one of which was unsubstantiated. § 87(2)(g), § 87(4-b)

§ 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Lissette Lopez spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) and PO Lopez had a conversation about § 87(2)(b)'s vehicle license plate. It is alleged by § 87(2)(b) that profanity was used during this conversation.

During her in-person interview at the CCRB, § 87(2)(b) stated that she told PO Lopez that her mother was a police officer in order to emphasize that she did not want her mother

to get into trouble and that if there was something wrong with the license plate, § 87(2)(b) needed to know so that she could relay it to her mother [BR 04]. PO Lopez became upset and told § 87(2)(b) “I don’t care. You are your mother are stupid bitches.” PO Lopez also told § 87(2)(b) to “fuck off” in response to the request for her name and shield number. § 87(2)(g)

§ 87(2)(b) the alleged profanity that was mentioned during the phone calls which were not mentioned in her verified statement [BR 01, 02].

In her unverified telephone statement to the CCRB, § 87(2)(b) stated that she went to the window, which faces § 87(2)(b), when she heard shouting outside [BR 05]. § 87(2)(b) noted that there was shouting from both § 87(2)(b) and the officers and that profanity was used, but she could not recall any of the statements that were made or who may have made them. § 87(2)(b) did not mention during her statement whether PO Lopez refused to provide her name and shield number to § 87(2)(b).

In her unverified telephone statement to the CCRB, § 87(2)(b) noted that she has known § 87(2)(b) for several years because their sons attend the same daycare; § 87(2)(b) also knows § 87(2)(b)’s grandmother, who lived in the area where § 87(2)(b) grew up [BR 06]. § 87(2)(b) was standing outside of § 87(2)(b) during the incident and that that she heard PO Lopez call § 87(2)(b) a “stupid bitch,” although she did not note at which point during the conversation this phrase was used. § 87(2)(b) did not mention during her statement whether PO Lopez refused to provide her name and shield number.

During her testimony, PO Lopez stated that she had explained to § 87(2)(b) that she was being issued a summons for double-parking and that PO Lopez had removed her front license plate [BR 07]. § 87(2)(b) told PO Lopez that the car belonged to her mother, who was a police officer. PO Lopez chose to ignore this comment and did not tell § 87(2)(b) that she and her mother were “stupid bitches.” She advised § 87(2)(b) to go to a New York State Department of Motor Vehicles office to get new license plates. § 87(2)(b) told PO Lopez, “You bitches have nothing else better to do.” PO Lopez denied telling § 87(2)(b) to “fuck off” in response to the request for her name and shield number.

PO Long’s statement to the CCRB was consistent with PO Lopez’s testimony with regards to this allegation [BR 08]. When § 87(2)(b) approached her vehicle, she asked what the problem was, and PO Lopez showed her that there was a digit missing from the license plate. § 87(2)(b) stated that the vehicle was not hers but her mother’s, and that her mother was a § 87(2)(b). PO Lopez said that she understood, but that it did not matter and § 87(2)(b) would still have to go to the New York State Department of Motor Vehicles to get a new plate. PO Long noted that PO Lopez never called § 87(2)(b) and her mother “stupid bitches.” § 87(2)(b) became very upset and began cursing at PO Lopez and PO Long, calling them “bitches” and using the word “fuck” several times, although PO Long could not recall exactly how the latter word was used. Once § 87(2)(b) began using profanity, PO Long and PO Lopez walked away. PO Lopez never told § 87(2)(b) to “fuck off” in response to a request for her name and shield number.

§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Lissette Lopez refused to provide her name and shield number to § 87(2)(b)

During her in-person interview at the CCRB, § 87(2)(b) stated that she asked PO Lopez for her name and shield number in response to the aforementioned alleged discourtesy [BR 04]. § 87(2)(b) asked for PO Lopez’s name and shield number, to which PO Lopez stated that “reading is fundamental,” which § 87(2)(b) understood to mean that she could read PO Lopez’s information on the summons. PO Lopez also told § 87(2)(b) to “fuck off” in response to the request for her name and shield number and did not provide that information. § 87(2)(g)

In her unverified telephone statement to the CCRB, § 87(2)(b) did not mention any exchanges regarding PO Lopez’s name and shield number [BR 05]. It should be noted that § 87(2)(b) had a vague recollection of the incident.

§ 87(2)(g)

She did not hear § 87(2)(b) say anything other than mentioning that her mother was an officer.

During her testimony, PO Lopez stated that when § 87(2)(b) requested her name and shield number, PO Lopez gestured to her shield and said, “My name is Lopez, it’s also on the summons” [BR 07]. PO Lopez believed she must have verbalized her shield number and denied telling § 87(2)(b) to “fuck off” in response to the request for her name and shield number.

§ 87(2)(g)

PO Long did not recall § 87(2)(b) asking for PO Lopez’s name and shield number, nor did she recall PO Lopez providing her name and shield number. PO Lopez never told § 87(2)(b) to “fuck off” in response to a request for her name and shield number.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **unfounded**.

Allegation C – Abuse of Authority: At the 88th Precinct Stationhouse, Lieutenant Joseph Davids did not process § 87(2)(b) s complaint regarding Police Officer Lissette Lopez.
Allegation D – Abuse of Authority: At the 88th Precinct Stationhouse, Sergeant Boris Durets did not process § 87(2)(b) s complaint regarding Police Officer Lissette Lopez.

It is undisputed that § 87(2)(b) went to the 88th Precinct stationhouse to file a complaint against PO Lopez and spoke with Lt. Davids and Sgt. Durets.

During her in-person statement to the CCRB, § 87(2)(b) stated that she spoke to Lt. Davids and Sgt. Durets and informed them that she wanted to file a complaint regarding PO Lopez’s language and behavior and to inquire about her license plate [BR 04]. The officers asked what happened and listened to her statement but wrote nothing down. Lt. Davids and Sgt. Durets gave her a voucher for the license plate, instructing her to take it to the New York State Department of Motor Vehicles. They gave § 87(2)(b) the CCRB’s phone number and told her

to make the complaint with the agency. Neither officer offered to fill out a complaint form with her or file a complaint on her behalf in any other way.

During his testimony to the CCRB, Lt. Davids stated that he spoke to § 87(2)(b) about how to file a CCRB complaint [BR 09]. § 87(2)(b) was given a CCRB complaint form, although Lt. Davids could not recall if he handed the form to § 87(2)(b) himself or if someone else had given it to her. Lt. Davids and Sgt. Durets explained the different ways that § 87(2)(b) could file a CCRB complaint, including the CCRB's online complaint submission form, the CCRB's phone number, 311, or the form that could be filled out at the stationhouse. Lt. Davids ensured that an entry was made in the Command Log regarding § 87(2)(b)'s request to file a CCRB complaint with her name, address, and date of birth by Sgt. Durets. He did not recall what § 87(2)(b) had decided to do in terms of filing her complaint but noted that the command log entry stated that she had decided to make her complaint at a later time. Lt. Davids believed that § 87(2)(b) may have mentioned wanting to speak to her friend in the NYPD first before submitting the complaint.

§ 87(2)(g)
Lt. Davids was not present during Sgt. Durets' conversation with § 87(2)(b) [BR 10]. Sgt. Durets advised § 87(2)(b) of all her filing options, including filing the complaint at the stationhouse, filing online, or writing a letter. He explained the process of filing the CCRB complaint at the stationhouse to § 87(2)(b) telling her that she could sit down and file the complaint there. Sgt. Durets did not give § 87(2)(b) the paper form for a CCRB complaint because she stated that she would either call or file the complaint online so that she could say what happened in her own words. Sgt. Durets provided § 87(2)(b) with an e-mail address and phone number to make her complaint. He then made the command log entry and § 87(2)(b) left the precinct stationhouse.

The Command Log entry made at 3:10 P.M by Sgt. Durets read: § 87(2)(b) opted to call the CCRB or possibly do the CCRB online after being provided with all her filing options" [NYPD 05].

§ 87(2)(g)
It is therefore recommended that **Allegations C and D** be closed as **unfounded**.

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date